

26PR00476 Matter of the Inez B. Hensley Trust

County: sonoma

Division: Probate

Hearing date: 2026-06-18

Motion: Petition for Removal of Trustee, Account, and Appointment of Successor Trustee

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26PR00476

Petition for Removal of Trustee, Account, and Appointment of Successor Trustee

Tentative Ruling: The petition is GRANTED as set forth herein. Joseph C. Hensley (Joseph) is removed as trustee. Sharon McLaughlin is appointed successor trustee, to serve without bond. Joseph is also ordered to clean the property of all debris and trash within 45 days of the date of this Order, and to make all further real property tax and insurance payments on the property and to maintain the property in a clean condition, making such repairs as may be reasonably necessary to retain the property's value. California Civil Code §840. If he fails to perform any of the foregoing requirements after 30 days written notice to cure, his right of occupancy of the property under the trust shall be terminated and the trustee may institute legal proceedings to obtain possession of the property.

As for the money damages requested related to taxes paid on the trust real estate and other maintenance, repair, expenses, loss of value, or waste related to the property, evidence will need to be presented to this Court before a decision can be rendered. Therefore, this matter is CONTINUED to October 2, 2026, at 9:30 a.m. in Department 12. The purpose of the continuance is to allow the petitioner time to conduct her own investigation if necessary and prepare to present written evidence to the Court and respondent regarding the amount of any damages/surcharge claimed. Unless the petitioner needs and requests more time, the petitioner should file and serve written evidence supporting the damages sought at least 10 days before the hearing. In the absence of any objection, the Court may decide the question based solely on the written evidence submitted. However, if there is an objection, or if the Court determines it requires live testimony, it may set an evidentiary hearing.

The Court finds this structure is necessary as the respondent may yet contest the amounts sought despite his failure to file an objection to the underlying petition. As an analogy, the Court points to the structure in civil cases for damages following a default. There, the amount of damages that may be awarded are limited by the allegations of the complaint, even where a statement of damages is served prior to entry of default. As discussed in the case of *Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267:

We begin with the basic guidelines for analyzing the legal effect of a default. "Substantively, '[t]he judgment by default is said to "confess" the material facts alleged by the plaintiff, i.e., the defendant's failure to answer has the same effect as an express admission of the matters well pleaded in the complaint.' (Steven M. Garber & Associates v. Eskandarian (2007) 150 Cal.App.4th 813, 823, 59 Cal.Rptr.3d 1, second italics added.) The "well-pleaded allegations" of a complaint refer to " 'all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.' " (Evans v. City of Berkeley (2006) 38 Cal.4th 1, 6, 40 Cal.Rptr.3d 205, 129 P.3d 394, quoting *Serrano v. Priest* (1971) 5 Cal.3d 584, 591, 96 Cal.Rptr. 601, 487 P.2d 1241.) Because the default confesses those properly pleaded facts, a plaintiff has no responsibility to provide the court with sufficient evidence to prove them—they are treated as true for purposes of obtaining a default judgment. (*Ostling v. Loring* (1994) 27 Cal.App.4th 1731, 1746, 33 Cal.Rptr.2d 391.) But that is all the default does. There is no penalty for defaulting. "A defendant has the right to elect not to answer the complaint. (*Greenup v. Rodman* (1986) 42 Cal.3d 822,

829 [231 Cal.Rptr. 220, 726 P.2d 1295].) Although this may have been a tactical move by defendant, it is a permissible tactic.” (Stein v. York (2010) 181 Cal.App.4th 320, 325, 105 Cal.Rptr.3d 1.) And if the well-pleaded allegations of the complaint do not state any proper cause of action, the default judgment in the plaintiff's favor cannot stand. On appeal from the default judgment, “[a]n objection that the complaint failed to state facts sufficient to constitute a cause of action may be considered.” see (Martin v. Lawrence (1909) 156 Cal. 191, 103 P. 913; Bristol Convalescent Hosp. v. Stone (1968) 258 Cal.App.2d 848, 859, 66 Cal.Rptr. 404.)

Id. at 281–282 (*italics in original*). Damages following a default are generally limited to those demanded in the complaint:

[Plaintiff's] complaint also fails to set forth any clear demand for damages, let alone one which would support the enormous judgment he obtained from the trial court. As this court has iterated and then reiterated, Code of Civil Procedure section 580 prohibits the entry of a default judgment in an amount in excess of that demanded in the complaint. [Citations omitted.] Moreover, we have also made it clear that a statement of damages cannot be relied upon to establish a plaintiff's monetary damages, except in cases of personal injury or wrongful death. “Statements of damages are used only in personal injury and wrongful death....[Citation.] In all other cases, when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint. [Citations.]” (Sole Energy Co. v. Hodges, *supra*, 128 Cal.App.4th at p. 206, fn. 4, 26 Cal.Rptr.3d 823....)

Id. at 286.

While this is not a civil action, the concern, based in due process, exists equally. That is the amount of damages to be claimed in the future are not entirely apparent from the allegations of the petition. Rather, the basis for the amount of damages will necessarily be known in the future. The petition therefore fails to provide notice to the respondent that a judgment against him for a specific amount would result from his failure to object to the petition. Of course, at any future hearing, the respondent may not contest any of the allegations of the petition, but he is entitled to be given an opportunity to present evidence and argument responsive to any claim for a specified amount of damages then raised.

Regarding the request for costs of suit associated with the petition and any prove-up hearing, they may be claimed pursuant to a memorandum of costs filed with the court and subject to a motion to tax at the conclusion of the matter. Any request for attorney's fees must be by noticed motion and include the authority for an award, as well as support for the amount requested.